

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

SEAN MACMANNIS,

Petitioner

VS.

GILLIAN MACMANNIS,

Respondent

) Case Number: FDI-21-794808

) Hearing Date: April 30, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER : TEMPORARY EMERGENCY ORDER, MOTION TO COMPEL
DEPOSITION TESTIMONY AND DOCUMENT PRODUCTION

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Petitioner Sean MacMannis (Father) and Respondent Gillian MacMannis (Mother). The parties married on 10/8/2011 and separated on 7/1/2020, for a marriage of 8 years and 10 months. The parties have two minor children, Arthur (FKA Avery, DOB: 3/9/2014) and Maisey (DOB: 6/7/2016).
- 2) Father is represented by attorneys Kimberly Lewellen and Amrit Kullar. Mother is represented by attorneys Lisa Tarr and Patricia Rich. Mother is also being represented in limited scope by attorney Daniel Cantrell who is representing Mother “until the completion of the depositions [of] Sean MacMannis, Gillian James, Christopher Wachsmith, and Dr. Jack Turban.” The Court notes that Mr. Cantrell filed a motion to be relieved as counsel, which is currently set to be heard on 5/19/2026.
- 3) This is a post-Judgment matter. A Judgment was entered on 7/27/2022.

1 4) There is currently a 5-day trial set in Dept. 405 on 5/28/2026, 6/3/2026, 6/4/2026, 6/23/2026, and
2 7/21/2026 on the following issues: school placement and selection, modification of parenting
3 schedule, and Father's relocation to Mill Valley. The Court notes that the original trial dates were
4 set in January 2026 but those trial dates were vacated and continued pursuant to Court order.

5 5) On for hearing is Father's Request for Order filed 12/23/2025. Father originally filed this Request
6 for Order on an ex parte basis. Father requests orders:

7 a. Extending the discovery cut-off, both fact and expert, as to Father through 1/20/2026 (on
8 an ex parte basis);

9 b. Requiring Mother to provide an expert exchange, CV, fee schedule, and all reports of
10 Jack Turban on or before 12/23/2025 along with an explanation when he was first
11 reached out, when he was retained, why he was not disclosed on or before December 5,
12 2025, and why his testimony was not reasonably anticipated to be needed (if at all) by
13 Mother (on an ex parte basis);

14 c. Requiring Mother to serve within 10 days a privilege log compliant with Code of Civil
15 Procedure section 2031.240 for any documents withheld from production on the basis of
16 privilege (on an ex parte basis);

17 d. Setting a hearing on shortened time on or before 12/31/2025 on the following requests
18 (on an ex parte basis):

19 i. Compel Mother to appear for a continued deposition and answer all questions
20 previously refused or evasive at her 12/15/2025 deposition without improper
21 objections or instructions not to answer;

22 ii. Compel Mother to produce additional discovery and preclude Mother from
23 introducing specified information not in evidence (including the preclusion of
24 "any expert testimony of witnesses who were not disclosed on the date required
25 for the expert exchange, December 5, 2025, including without limitation, Jack
26 Turban...")

27 iii. Short continuance of trial with a direct set or set on trial setting calendar. "Given
28 each Party has now identified expert witnesses, it is likely the current time set for
29 trial is insufficient, and the case likely requires 3-5 days."

1 iv. Award Father monetary sanctions against Respondent and / or her counsel in an
2 amount of \$15,000 or other amount pursuant to Code of Civil Procedure sections
3 2023.010, 2023.030, 2025.450, 2025.480, 2031.310, Family Code section 271,
4 and the Court's inherent authority.

5 6) On 12/22/2025, Father's attorney filed a declaration. Father's attorney states that on 12/5/2025
6 (per San Francisco Local Rule 11.13), her office served Father's expert witness disclosure, Dr.
7 Bruno as a retained expert witness and Chris Wachsmith as a non-retained expert witness and
8 Mother did not provide any witness disclosure. Father's attorney states that she took Mother's
9 deposition on 12/15/2025 but had to suspend it to file a discovery motion. Father's attorney states
10 that Mother is attempting to have Dr. Turban testify at trial as a rebuttal expert witness, but "he
11 has no apparent relevant experience that would rebut Petitioner's expert, Dr. Bruno (childhood
12 education / gatekeeping / alienation / school choice and other associated issues)." Father's
13 attorney states that "it appears that Dr. Turban is an expert for Respondent's mental health
14 arguments she has been attempting to have Tier II interviews on, and this Court declined
15 repeatedly over the past few months. He is an expert on gender psychiatry and has a strong
16 clinical background; but nothing relevant to the issues identified by the Court – school choice and
17 relocation."

18 7) In the Ex Parte Application and Memorandum filed 12/22/2025, among other arguments made,
19 Father's attorney states the Court should exclude the testimony of Dr. Turban because Dr. Turban
20 was not disclosed as part of the original witness exchange and that Mother cannot rely on Code of
21 Civil Procedure section 2034.280 to salvage Dr. Turban's disclosure. Father's attorney states,
22 "Supplemental expert designations are narrowly limited and permitted only where the party
23 participated in the initial exchange, has not previously retained an expert on the subject, and the
24 supplemental expert's testimony is strictly confined to subject matter first raised by an adverse
25 party's expert. Section 2034.280 does not allow a party to cure a failure to timely designate an
26 expert, correct a tactical omission, or introduce a new theory on the eve of trial." Father's
27 attorney cites *Fairfax v. Lords* (2006) 138 Cal.App.4th 1019. Father's attorney states that the
28 record makes clear that Mother's anticipated use of Dr. Turban is not true rebuttal. Father's
29 attorney states that the discovery cutoff was 12/23/2025 and that the last day to serve a

1 supplemental expert discovery list was 12/25/2025 (20 days after the original witness exchange
2 date of 12/5/2025 per San Francisco Local Rule 11.13). Father's attorney stated that she asked
3 Respondent's counsel for an agreement to extend the discovery cut-off (expert and fact) to
4 1/20/2026 so the parties would have time to bring the matter to Court and to resolve the discovery
5 dispute and no response was received.

6 8) On 12/22/2025, Father filed a Separate Statement in support of his requests to compel further
7 deposition testimony and document production.

8 9) On 12/23/2025, Mother filed a Responsive Declaration asking the Court to deny Father's
9 requested relief. Among other arguments made, Mother notes that she hasn't even designated Dr.
10 Turban as a rebuttal expert yet and that Father's motion is a request to nullify Mother's right to do
11 so under Code of Civil Procedure section 2034.280. Father requested additional time to respond
12 to Mother's discovery requests.

13 10) On 12/23/2025, the Court issued Temporary Emergency Ex Parte Orders setting the matter on
14 shortened time on 12/30/2025. The Court ordered Mother to file a response to Father's discovery
15 and possible trial continuance request on or before 12/26/2025.

16 11) On 12/26/2025, Mother filed a Responsive Declaration and related pleadings, including a
17 Separate Statement.

18 12) On 12/26/2025, Father's attorney filed a Reply Memorandum and declaration. Father's attorney
19 states that on 12/23/2025, Mother served a supplemental exchange list stating that Dr. Turban is
20 expected to provide rebuttal testimony and opinions to Petitioner's retained expert Dr. Bruno
21 including the "psychological, educational, developmental, and relational impacts of relocation
22 and school displacement on minor children, including the effects of transferring from Children's
23 Day School to Atherton, stability and continuity factors, risk factors related to disruption of peer
24 and academic relationships, long commutes, and parent-child contact... [and] effects under the
25 so-called La Musga factors and the overall best interests of the children, using records, collateral
26 information, interviews, and psychological literature." Father's attorney argues that Dr. Turban's
27 CV contains no experience that qualifies him to provide rebuttal testimony on the impact of
28 relocation and school choice, La Musga factors, and co-parenting dynamics at issue in this case.
29

1 Father's attorney states that, by his CV, Dr. Turban's expertise is on gender psychiatry and
2 clinical treatment, which are not issues in this case."

3 13) On 12/26/2025, Father filed an application to lodge and file under seal Dr. Bruno's Expert Report
4 On Custody Issues Set for Trial pursuant to California Rules of Court, Rule 2.551.

5 14) At the 12/30/2025 hearing, the Court made a determination that the matter was not ready for trial,
6 vacated the January 2026 trial dates, and set the matter for a Judicial Settlement Conference and
7 Trial Setting Conference before Judge Wiley. The Court also extended the discovery cutoff so
8 that the parties could take future expert depositions. The Court further continued the hearing on
9 Father's 12/23/2025 Request for Order to 2/20/2026.

10 15) The 2/20/2026 hearing date on Father's 12/23/2025 Request for Order was subsequently
11 continued to 3/20/2026, and then to 4/17/2026, and finally to 4/30/2026.

12 16) On 4/10/2026, Father's attorney filed a Notice of Errata for her declaration filed on 12/22/2025
13 noting that she omitted to attach Exhibit 10 (the transcript of Mother's deposition taken on
14 12/15/2025) to her declaration.

15 17) On 4/10/2026, Father filed a Supplemental Reply Memorandum and Supplemental Declaration of
16 his attorney Kimberly Lewellen. Father's attorney reiterates many of the same arguments made in
17 her prior declarations. In addition to prior arguments made regarding Father's need to depose
18 Mother again, Father also adds that he needs to depose Mother regarding her new job. Father
19 requests that, in light of the continuance of trial, that the Court reserve on Father's motion to
20 exclude Dr. Turban for trial, order Mother to produce all reports, materials, and communications
21 in her expert's control and possession as well as all invoices generated in the case within 20 Court
22 days before 5/28/2026. Father also asks for an order requiring Mother to present her expert for
23 deposition at least 10 Court days before trial or other date Father may request for deposition.
24 Father also now increases his request for attorney's fees sanctions to \$20,000.

25 18) On 4/27/2026, Mother filed Objections and Motion to Strike Father's Supplemental Reply
26 Pleadings filed on 4/10/2026 on the grounds that these pleadings impermissibly introduce new
27 evidence, was not authorized for filing under the Code of Civil Procedure, and prejudice Mother's
28 due process rights as Mother lacks a meaningful opportunity to rebut or respond. Mother requests
29

attorney's fees sanctions in an unspecified amount under Code of Civil Procedure sections 2023.030 and 2023.010 and Family Code section 271.

19) On 4/28/2026, Father filed a Memorandum of Points and Authorities and Response to Respondent's Objections and Motion to Strike arguing that it is procedurally deficient and unwarranted.

B. Findings and Order

- 1) Mother's request to strike Father's Supplemental Reply Pleadings filed on 4/10/2026 is denied.
- 2) No later than 5/28/2026, Mother shall produce all reports, materials, and communications in Dr. Turban's control and possession. If Father has not already done so, he shall produce all reports, materials, and communications in his designated experts' control and possession by the same deadline.
- 3) Father's request that the Court compel Mother to provide all invoices for Dr. Turban is denied.
- 4) Father may depose Dr. Turban at least 10 Court days before trial. The parties shall cooperate to select a date and time for Dr. Turban's deposition.
- 5) Father's motion to exclude Dr. Turban's testimony will be heard at trial.
- 6) The Court will consider Father's Separate Statement filed 12/22/2025. The Court takes under submission Father's request that he be permitted to depose Mother again and Father's request that the Court compel Mother to answer various questions and produce various documents as set forth in his Separate Statement filed 12/22/2025. The Court will also consider Mother's Separate Statements filed in opposition on 12/26/2025. The Court further takes under submission both parties' requests for attorney's fees sanctions.
- 7) Father shall prepare the Findings and Order After Hearing memorializing the orders set forth above. The Court will prepare an additional Findings and Order After Hearing to address the issues it is taking under submission.
- 8) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the proposed order after hearing directly to the court. Failure to submit the order after hearing within

1 10 days may allow the other party to prepare a proposed order and submit it to the court in
2 accordance with CA Rules of Court, Rule 5.125(d).